

ORDINANCE NO. _____

Date: 6/3/21

ENTITLED: "AN ORDINANCE AMENDING VARIOUS SECTIONS OF CHAPTER 5.52, MASSAGE ESTABLISHMENTS, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING."

BE IT HEREBY ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE WYOMING:

Section 1. That various sections of Chapter 5.52, Massage Establishments, of Title 5, Business Licenses and Regulations, of the code of the City of Cheyenne, Wyoming, are hereby amended as set out in this ordinance.

5.52.130 Denial, suspension or revocation of license or permit.

A. Denial. Within ten (10) days of the denial of an application for a massage business establishment license, or massage therapist permit, the applicant may file with the city clerk a written request for a hearing ~~before the governing body in accordance with Chapter 2.92, Administrative Hearing Procedure. At the hearing, to be held at a reasonable time after receipt of request, evidence will be received for the purpose of determining whether the denial should be upheld; the notification of and reason for such decisions shall be set forth in writing and sent to the applicant by means of registered or certified mail or hand delivery. During the hearing all requirements of the Wyoming Administrative Procedure Act shall be followed.~~

B. Suspension or Revocation. Any massage business establishment license, or massage therapist permit is subject to suspension or ~~revocation~~ for violation ~~for~~ of any provision of this chapter, or for grounds that would warrant the denial of the issuance of such license or permit in the first instance, or for the violation of any law relating to or regulating massage business establishments or massage therapists.

~~C. Except in cases of emergency health and/or safety reasons, as defined by the city/county health director, the suspension or revocation of a license or permit will be accomplished pursuant to a hearing held before the governing body at which time evidence will be received for the purpose of determining whether the license or permit should be suspended, revoked or retained. Following the hearing, if the license or permit is suspended or revoked, the notification of reasons for such decision shall be set forth in writing and sent to the licensee or permittee by the city clerk by means of registered or certified mail or hand delivery. Emergency suspensions or revocations are reviewable pursuant to the appeal process set forth in this chapter.~~

~~C. The holder of a massage business establishment license or massage therapist permit that is suspended or revoked may file with the city clerk a written request for a hearing in accordance with Chapter 2.92, Administrative Hearing Procedure.~~

Section 2. That sections currently existing in Chapter 5.52 not set out within this ordinance remain unchanged.

Section 3. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

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